Allergen information for food businesses

Food allergy is very serious, causing illness and even death. Food allergies occur in around 1 in 10 babies, 1 in 20 teens and 1 in 50 adults. The most severe allergic reaction is known as anaphylaxis – which is potentially life threatening.

Food businesses must be aware of their responsibility to declare and manage allergens when required, and the requirement to recall or quarantine recalled products.

Most people who have severe food allergic reactions in Australia have them when eating food prepared by another person. Allergic reactions and fatalities have occurred from people consuming food purchased in food service businesses, and from undeclared allergens in packaged foods.

In Australia most recalls are due to undeclared allergens in packaged foods. Visit the FSANZ recall page for up to date information.

Food allergens – do you know what needs to be declared?

Even very small amounts of an allergen in food can trigger a reaction. The most common

things that trigger reactions in Australia must be declared when required. When and how allergens must be declared is stated in Standard 1.2.3. The allergens that need to be declared are listed Schedule 9 of the Food Standards Code :

- peanuts
- tree nuts including almond, Brazil nut, cashew, hazelnut, macadamia, pecan, pine nut, pistachio and walnut (each tree nut must be declared separately)
- milk
- egg
- crustaceans (shellfish)
- molluscs
- fish
- sesame seeds
- soybeans
- lupin
- wheat (excluding in beer or spirits, or in glucose syrups that are refined to reduce the gluten protein content to 20mg/kg or below), and gluten (if present)
- rye, barley and oats, and gluten (if present)
- Added sulphites (in amounts greater than 10mg/kg).

Allergen labelling postcard in plain English (PDF 107KB)

Providing information to consumers

Information about allergens can be provided in several ways depending on how the food is provided to the consumers.

If a business doesn't provide food allergen information, or if an allergen is found in food that was not declared, you may be breaking the law, and putting your consumers at risk of illness, injury, or even death.

Allergens in food service

Food businesses must be honest and provide accurate information to consumers, you must take food allergies seriously. A food business is not obliged to provide an allergen free food or meal to a consumer unless the business agrees to, but if agreed, steps must be taken to ensure the food is allergen free.

Providing allergen information – it's the law

Consumers have a legal right to receive written or verbal information on allergen content if they ask for it when buying food. This is a requirement of the Food Act 2001 and the Food Standards Code . Penalties for falsely describing food which causes harm to a person can include large fines or imprisonment up to four years.

LISTEN and be TRUTHFUL

- Take consumer requests about allergens seriously. Listen carefully.

- Give accurate information about the food and its ingredients, do not guess, if you do not know the information seek it out.
- Have a procedure or system in place to manage requests made by allergic consumers. This may include advising consumers you're unable to cater for special dietary requirements.
- Be honest about what the business can provide, especially if there are allergens being used in the kitchen.
- Consider making a note on your menu asking consumers to ALWAYS disclose their food allergy before ordering.

KNOW what's in your food

- Regularly check ingredient labels as these can change over time. Look for hidden allergens in commonly used ingredients e.g. vegetable oil containing peanuts or soyabean.
- If you change suppliers or ingredients, be sure to check them, don't assume that all ingredients and products are exactly the same.
- When consumers disclose their food allergy, the food business has a responsibility to know what's in their ingredients. Some foods may contain one or more allergens which should be declared on the label or product specification sheet (for caterers).

PREPARE food safely

- Wash your hands and always use clean gloves. Put on a clean apron if one is available.

- Store ingredients carefully and stick to the recipes when making food.
- Prevent cross contamination:
    - When preparing an allergen safe meal ensure the preparation area and all equipment in contact with the food is thoroughly cleaned with a clean cloth and warm soapy water. This includes grills, pots and pans. Some businesses choose to use dedicated equipment for the preparation of certain allergen free meals.
    - Remember, if you re-use oil for deep frying, food allergens are not destroyed by cooking or frying so cross contamination with allergens like fish, wheat and gluten can occur.

- Have a clear way of identifying the meal for the consumer with the food allergy. You can use any method that works for you, but some examples include using coloured toothpicks for plated meals or stickers for wrapped foods.
- Consider carrying the allergen free meal out to the consumer without other meals, to prevent any cross contamination from spillages from one plate to another. Ensure the right meal goes to the right person.

EDUCATE your staff – UNDERSTAND the consequences

- Train all staff in food allergen risks, management, communication and the consequences of serving up a contaminated meal to an allergic consumer. Free training is available on the Food Allergy Training website or DoFoodSafely website

- All staff should be aware when an allergen free meal is being prepared. This helps

minimise cross-contamination risks. Even tiny amounts of contaminants can cause an allergic reaction.

Resources for food service

- Allergy aware checklist (PDF 146KB) - National Allergy Strategy
- All about allergens booklet (PDF 959KB) - National Allergy Strategy
- Potentially Life Threatening booklet (PDF 3.37MB) - NSW Food Authority
- The usual suspects A3 poster (PDF 4.57MB) - Allergy Facts
- Allergen Labelling Poster - Food Standards Australia New Zealand
- Food allergen portal - Food Standards Australia New Zealand

Allergen labelling requirements – packaged and unpackaged food

PART 1.2 of the Food Standards Code sets out the requirements for labelling of packaged food and for providing information about unpackaged food.

It is the responsibility of food businesses to ensure they are correctly labelling products and providing information to consumers. Where a packaged food is found to have an undeclared allergen, a recall or withdrawal will be required at the expense of the business. Fines can also apply under the Food Act 2001 .

- Allergen labelling postcard in plain English (PDF 107KB)

Packaged foods

Food businesses that make or import packaged foods must meet the allergen labelling requirements set out in Standard 1.2.3 Information requirements - warning statements, advisory statements and declarations . The allergens in Schedule 9 table S9-3 must be declared on labels:

- Using the required names (as listed above)
- In the ingredients list in bold
- In a summary “Contains” statement in bold next to the ingredients list.

Allergen information on labels must be clear and accurate

If businesses make “allergen free claims” such as “Dairy Free” or “Gluten Free" they must meet the requirements of Standard 1.2.7 Nutrition, health and related claims and additional labelling requirements of Standard 1.2.8 Nutrition information requirements .

The following business types must comply with these labelling requirements :

- **Manufacturers**: Manufacturers are responsible for managing the presence of food allergens.
- **Importers**: Importers are responsible for ensuring imported foods are labelled in accordance with Australian labelling legislation.
- **Home businesses and market stalls**: All food businesses, including those making food for sale at home, must comply with the Food Standards Code. Be allergy aware and either label packaged food as required by the Food Standards Code, or have allergen information available for unpackaged foods, or foods not required to have a

label. Information can be found here:

- Home-based food businesses - Food Standards Australian New Zealand
- Farmers' Market Food Safety Guide (PDF 1.01MB) - Australian Farmers' Markets Association

May contains statements

"May contain" statements can be used to indicate that during harvest, storage or manufacture, the product may have been unintentionally cross contaminated with an allergen, which may be a risk to an allergic consumer. These statements are voluntary statements and not regulated by the Food Standards Code, business may choose use them to provide extra information to the consumer.

Food businesses can make allergen free products in the same facility they use to produce other products containing other allergens, by using good allergen management practices. These practices include creating a product scheduling, alongside appropriate controls for cleaning, sanitising, and cross contamination. Consumers can contact manufacturers if they have questions about their "may contain" statements.

Foods exempt from bearing a label

Retail: Some packaged food for sale is not required to have a label, for example:

- where the products are made and packaged on the premises where it is sold,
- where food is served from an assisted display cabinet,

- where the food is packaged in the presence of the purchaser.

In these circumstances product information such as ingredients and allergen information must be available and either:

- displayed on or in connection with the display of food; or,
- provided to the purchaser upon request either verbally or in writing.

When a consumer identifies that they have a dietary requirement such as a food allergy or intolerance, you have a legal responsibility to help the consumer by providing accurate information about what the food is made from. You must specify whether any ingredients contain, or may contain, allergens. Businesses need to have processes in place to ensure this occurs every time (see above Allergens in food service).

Caterers: Foods sold for catering purposes has specific labelling requirements set out in the Food Standards Code. Information about allergens must always be on the label or accompany the food.

Responsibility to recall

All food businesses engaged in the wholesale supply, manufacture or importation of food must have a system in place to ensure the recall of unsafe food [Standard 3.2.2-12]. If labelling fails to declare the allergens that are present, the food business must recall the affected product.

Information about how to recall food can be found on the FSANZ website:

- How to recall food
- Food Industry Recall Protocol

If you are a South Australian business and you need to undertake a recall, contact the Food Standards Surveillance Unit on (08) 8226 7100 or email healthfood@sa.gov.au.

Useful websites for food allergen information

There are extensive resources available for food businesses regarding allergens, with these being the most relevant for food businesses.

Print friendly fact sheet: General information and useful resources (PDF 370KB)

About allergens

National Allergy Strategy

National Allergy Strategy exists to improve the health and quality of life of Australians with allergic diseases, and minimise the burden of allergic diseases on individuals, their carers, healthcare services and the community. It has extensive free downloadable resources.

Allergy and Anaphylaxis Australia

Allergy and Anaphylaxis Australia supports individuals and carers in managing allergy and anaphylaxis. It has extensive free downloadable resources.

FSANZ Food allergen portal

This food allergen portal was created by the Allergen Collaboration to provide different sectors in the community with links to best practice food allergen resources and key messages to promote in the different sectors.

Food service allergen training

National Allergy Strategy

A free online training package for food service . A certificate is available on completion of this 1.5 hour long course. Extensive food allergen management resources for all types of food business, including hospitals, schools and child care centres.

Do food safely

DoFoodSafely is a free, non-accredited, online learning program provided by the Department of Health and Human Services Victoria and proudly supported by Queensland Health and South Australia Health.

For food manufacturers and industry

The VITAL Program

VITAL (Voluntary Incidental Trace Allergen Labelling program) is a standardised allergen risk assessment process for food industry. It assists food manufacturers to assess ingredients and processing conditions that contribute towards the allergen status of the finished product. There are also resources to explain allergen labelling.

National Measurement Institute (NMI)

The National Measurement Institute is an Australian laboratory which can test foods for the presence of allergens.

More information

Contact your local council Environmental Health Officer or SA Health's Food and Controlled Drugs Branch:

- email: healthfood@sa.gov.au
- phone: (08) 8226 7100

Related information

You can search through to find related information.